

SUB-SUBLEASE

THIS SUB-SUBLEASE (this “**Sub-Sublease**”) is made between Sub-Sublessor and Sub-Sublessee, both identified in Section 1 below, and constitutes a Sub-Sublease of the Sub-Subleased Premises, identified in Section 1 below, on the terms and conditions set forth in this Sub-Sublease.

1. **Basic Sub-Sublease Provisions.** The following are certain Sub-Sublease provisions, which are of, and sometimes referred to, in, subsequent provisions of this Sub-Sublease:

- a. Commencement Date: August 1, 2026.
- b. Sublessor: Ruskin Company, a Delaware corporation

Address: Air Distribution Technologies, Inc. c/o Colliers International Attn: OS Lease Administration
1230 Peachtree Street NW, Suite 800 Atlanta, GA 30309

Sub-Sublessor: US LBM Holdings, LLC,
a Delaware limited liability company

Address: c/o US LBM Holdings, LLC
2077 Convention Center Concourse, Suite 125
Atlanta, GA 30337
Attention: Michael Schultz
(Michael.schultz@uslbn.com),
- c. Sub- Sublessee: TDIndustries, Inc., a Texas corporation

Address: 13850 Diplomat Drive
Dallas, TX 75234

Attn: David Fultz

d. Sub-Subleased Premises: approximately 55,061 sf located at 1615 Diplomat Drive, Suite 100, Carrollton, TX as (the “**Sub-Subleased Premises**”), which Sub-Subleased Premises is now currently leased by Sub-Sublessor under the Sublease (defined below). Sub-Sublessee accepts the Sub-Subleased Premises in its “as is” condition and acknowledges that Sub-Sublessor has made no representations or warranties as to the condition of the Sub-Subleased Premises.

e. Expiration Date: March 31, 2027, and in no event shall the term of this Sub-Sublease extend past the term of the Prime Lease (as defined below) and the Sublease.

f. Sub-Sublessee’s monthly gross rent payment (“**Rent**”) for the Term shall be Twenty-Nine Thousand Dollars and 00/100 (\$29,000.00), payable on the first day of each month during the Term, without deduction or offset and without prior notice or demand. If Sub-Sublessee fails to make any payment due Sub-Sublessor under this Sub-Sublease within five (5)

days of the due date, Sub-Sublessee shall immediately pay Sub-Sublessor a late charge equal to ten percent (10%) of the past due amount in addition to such amount due under this Sub-Sublease. If the Commencement Date or Expiration Date occurs on a date other than the first day or the last day, respectively, of a calendar month, then the Rent for such partial month shall be prorated and the prorated Rent shall be payable on the Sub-Sublease commencement date or on the first day of the calendar month in which the Sub-Sublease termination date occurs, respectively.

g. Security Deposit: Twenty-Nine Thousand Dollars and 00/100 (\$29,000.00) a non-interest-bearing Security Deposit is due and payable upon execution of this Sub-Sublease. In the event Sub-Sublessee has performed all of the terms and conditions of this Sub-Sublease during the term hereof, Sub-Sublessor shall return to Sub-Sublessee, within 15 business days after Sub-Sublessee has vacated the Sub-Subleased Premises, the Security Deposit less any sums due and owing to Sub-Sublessor.

h. Prime Lease: Agreement of Lease dated March 10, 2016 (the “**Prime Lease**”) made and entered by and between Sublessor and Prologis, L.P., a Delaware limited partnership (“**Prime Landlord**”), as successor-in-interest to DCT 1615 Diplomat LP.

i. Sublease: Sublease dated as of November 2021, between Sublessor and Sub-Sublessor (the “**Sublease**”). The Sublease was assigned from Texas Building Supply US LBM, LLC, a Texas limited liability company to Sub-Sublessor on December 31, 2022. Sublessor consents to this assignment.

2. **Term.** Sub-Sublessor sub-leases to Sub-Sublessee the Sub-Subleased Premises for the term commencing on the Commencement Date and ending on the Expiration Date (such period, the “**Term**”), unless sooner terminated as hereinafter provided.

3. **Use.** Sub-Sublessee shall have exclusive use of the Sub-Subleased Premises, subject to the terms and conditions of the Prime Lease. Sub-Sublessee shall use the Sub-Subleased Premises for general office and warehouse use. Sub-Sublessee shall, at all times, comply with all laws concerning the Sub-Subleased Premises or Sub-Sublessee’s use thereof at its expense.

4. **Prime Lease.**

a. The parties agree that this Sub-Sublease shall be subject and subordinate to all of the terms, covenants, conditions and provisions of the Prime Lease and to all future modifications, extensions or amendments thereof, and to all the title and other matters to which the Prime Lease is subject and/or subordinate. Sub-Sublessor acknowledges that Sub-Sublessor shall remain liable under the Prime Lease notwithstanding this Sub-Sublease. Sub-Sublessee acknowledges receipt of the Prime Lease.

b. Sub-Sublessee shall not have any rights in the Sub-Subleased Premises greater than Sub-Sublessor’s rights under the Prime Lease and the performance by Sub-Sublessor of any of the terms and conditions of this Agreement upon the Sub-Sublessor’s part to be performed shall be subject to and dependent upon the performance by Prime Landlord under the Prime Lease of the terms, covenants, conditions and provisions, expressed or implied, of the Prime Lease on the part of Prime Landlord under the Prime Lease to be performed, Sub-Sublessor shall be under no obligation or liability whatsoever to Sub-Sublessee in the event that Prime Landlord

fails to perform any of the terms and conditions contained in the Prime Lease on the part of Prime Landlord to be performed. By signing below, Sublessor hereby consents to this Sub-Sublease. Notwithstanding anything to the contrary, Sub-Sublessee shall not be bound to any documents not furnished to the Sub-Sublessee and agreed to in writing prior to execution of this Agreement. Sub-Sublessee acknowledges that it has been furnished copies of the Sublease and Prime Lease. Sub-Sublessee shall have the benefit of all rights, remedies, and redress against the Sub-Sublessor which the Sub-Sublessor, under the Sublease, has against the Prime Landlord, insofar as applicable to this Sub-Sublease.

c. Sub-Sublessee shall not assign, convey or Sub-Sublease any portion of the Sub-Subleased Premises without the express written consent of Prime Landlord, Sublessor and Sub-Sublessor, which such consent may be withheld in its and their sole discretion.

d. In the event this Sub-Sublease contains any terms inconsistent with the Prime Lease, the terms of the Prime Lease shall control.

5. **Rent.**

a. During the term of this Sub-Sublease, Sub-Sublessee shall pay Sub-Sublessor (or such other party as Sub-Sublessor shall designate from time to time) Rent in the amount set forth in Section 1.f above. All Rent shall be paid by Sub-Sublessee on the first day of each calendar month during the Term without demand and without any deduction or set-off whatsoever.

b. The Security Deposit may be applied by Sub-Sublessor to any and all obligations of Sub-Sublessee in the event of any default by Sub-Sublessee.

6. **Duties of Sub-Sublessee.** Sub-Sublessee shall take no action that would be a breach or violation of the Prime Lease if such action were taken by Sublessor or of the Sublease if such action were taken by Sub-Sublessor. Sub-Sublessee shall use and maintain the Sub-Subleased Premises in a neat, clean, safe and sanitary condition, free of all garbage and unkempt vegetation.

7. **Indemnity and Insurance.** Sub-Sublessee and Sub-Sublessor agree to indemnify and defend each other, as well as the Prime Landlord and their respective licensees, agents, employees, and contractors, and to hold them harmless from and against any loss, damage, claim of damage, liability, or expense (including attorneys' fees) to or for any person or property, whether based on contract, tort, negligence, or otherwise, arising directly or indirectly out of or in connection with (i) the use or misuse of the Sub-Subleased Premises by either party; (ii) the acts or omissions of either party, including their respective licensees, servants, agents, employees, or contractors; and (iii) any failure of either party to comply with any provision of this Sub-Sublease and/or the Prime Lease. This mutual indemnity shall survive the expiration or termination of this Lease.

8. **Insurance.** Sub-Sublessee shall, from the date it takes possession of the Sub-Subleased Premises until the end of the Term, keep in force and effect, with respect to the Sub-Subleased Premises, the same insurance coverage that Sublessor is required to keep in force and effect under the Prime Lease. Sub-Sublessee shall name Prime Landlord and Sub-Sublessor as an

additional insured under its policies of insurance in compliance with the terms of the Sublease and Prime Lease.

9. **Waiver of Subrogation.** Sub-Sublessor and Sub-Sublessee hereby release each other and their respective agents and employees from any and all liability to each other or anyone claiming through or under them by way of subrogation or otherwise or any loss or damage to property caused by or resulting from risks insured against under fire or other extended coverage casualty insurance carried by the parties hereto and in force at the time. of any such loss or damage, provided, however, that this release shall be applicable only with respect to loss or damage occurring during such time as the releaser's policies of insurance contain a clause or endorsement to the effect that any such release shall not adversely affect or impair such policies or prejudice the right of the releaser to recover thereunder. Sub-Sublessor and Sub-Sublessee each agree that it will request its insurance carriers to include in its policy such a clause or endorsement and will include such clause if available at reasonable costs.

10. **Default.** If Sub-Sublessee fails to pay any installment of Rent, additional rent or any other charge due under this Sub-Sublease when due, or if Sub-Sublessee fails to perform any of the other covenants or conditions to be performed by Sub-Sublessee under this Sub-Sublease within 15 days after written notice from Sub-Sublessor setting forth such default shall have been mailed to Sub-Sublessee, Sub-Sublessor shall have all of the rights Prime Landlord would have under the Prime Lease as if default of the Prime Lease had occurred. If Sub-Sublessee shall, at any time, be in default hereunder, Sub-Sublessor shall have the right to re-enter the Sub-Subleased Premises and relet the same and shall be entitled to demand and receive the excess, if any, of the rent payable hereunder over the rent received pursuant to such reletting.

11. **Assignment.** Sub-Sublessee shall not by operation of law or otherwise, assign, sublet, mortgage, pledge or otherwise encumber the Sub-Subleased Premises in whole or in part or its interest in this Sub-Sublease, without prior written consent of Sub-Sublessor and Prime Landlord in each instance, which such consent may be withheld in its or their sole discretion.

12. **Alterations.** In the event Sub-Sublessee desires to make any improvements or alterations to the Sub-Subleased Premises which, if made by Sub-Sublessor, would require the consent of Prime Lessor under the Prime Lease, prior to making any such alterations Sub-Sublessee shall obtain the prior written consent of Prime Lessor pursuant to the terms of the Prime Lease.

13. **Miscellaneous.**

a. Notices and other communications hereunder shall be in writing and shall be given or made by certified mail with return receipt requested, or via nationally recognized overnight courier, addressed to such party at the address for such party set forth above or at any other address which either party may hereafter designate, by written notice, for such purpose.

b. This Sub-Sublease shall be governed by and construed in accordance with the laws of the state where the Sub-Subleased Premises is located.

c. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original and all of which shall constitute one agreement. The signature of any party to any counterpart shall be deemed to be a signature to, and may be appended to, any other counterpart.

d. This Sub-Sublease contains all of the agreements of the parties, and there are no verbal or other agreements which modify or affect this Sub-Sublease. This Sub-Sublease supersedes any and all prior agreements made or executed by or on behalf of the parties hereto regarding the Sub-Subleased Premises and sets forth obligations concerning the Sub-Sublease Premises.

e. Time is of the essence of this Sub-Sublease.

f. The words "Sub-Sublessor" and "Sub-Sublessee" include the plural as well as the singular, and words used in any gender include all genders. The titles to sections of this Sub-Sublease are not a part of this Sub-Sublease and shall have no effect upon the construction or interpretation of any part hereof. Capitalized terms used in this Sub-Sublease without definition which are defined in the Prime Lease shall have the same meanings given to such terms in the Prime Lease.

g. Any provision of this Sub-Sublease which shall prove to be invalid, void or illegal shall in no way affect, impair or invalidate any other provision hereof, and the remaining provisions hereof shall nevertheless remain in full force and effect.

h. Except as may be otherwise specifically provided herein, time periods for either party's performance under any provisions of this Sub-Sublease not involving the payment of money or Rent shall be extended for periods of time during which said party's performance is prevented due to circumstances beyond the party's control, including, without limitation, strikes, embargoes, governmental regulations, acts of God, war or other strife.

i. Submission of this instrument for examination or signature by Sub-Sublessee does not constitute a reservation of or option to lease, and it is not effective as a lease or otherwise unless and until (a) the execution by and delivery to both Sub-Sublessor and Sub-Sublessee, and (b) the Prime Landlord consents hereto as provided above.

j. Neither Sub-Sublessor nor Sub-Sublessee shall record this Sub-Sublease nor any memorandum hereof without the written consent of the other and the Prime Landlord.

k. All provisions of this Sub-Sublease which require the payment of money or the delivery of property after the termination of this Sub-Sublease or require Sub-Sublessee to indemnify, defend or hold Sub-Sublessor and/or Prime Landlord harmless or require Sub-Sublessor to indemnify, defend or hold Sub-Sublessee harmless shall survive the termination of this Sub-Sublease.

l. Improvements: Sub-Sublessor shall, at Sub-Sublessor's expense, provide the following improvements to the Sub-Subleased Premises, prior to the Commencement Date:

i. Deliver the Sub-Subleased Premises in broom clean condition

- ii. Repair restrooms
- iii. Treat for pests and insects, once prior to the Commencement Date
- iv. Deliver the Sub-Subleased Premises in good working order including all electrical, fixtures, plumbing, doors, lights, HVAC, and gas lines.

m. Sub-Sublessor shall warrant all plumbing, gas lines, HVAC, electrical systems, lights, and doors throughout the Term. Sub-Sublessee shall not be responsible for repairs or replacement associated with these systems. Nothing in this Section 13(m) shall obligate Sub-Sublessor to take on any repair/maintenance obligations in excess of its obligations under the Sublease.

n. Operating Expenses are not the responsibility of the Sub-Sublessee due to gross lease.

14. **Binding Effect.** This Sub-Sublease shall be binding upon and inure to the benefit of the parties hereto and their permitted successors and assigns.

15. **Brokers.** Sub-Sublessor and Sub-Sublessee each represent and warrant that they have dealt with no real estate broker, agent or other person in connection with this transaction and that no broker brought about this transaction, except for Rich Young Jr. of the Rich Young Company (“**Sub-Sublessor’s Broker**”) who has served as Sub-Sublessor’s exclusive representative in connection with the negotiation and consummation of this Sub-Sublease, and Stream Realty Partners - DFW, L.P. (“**Sub-Sublessee’s Broker**”), who has served as Sub-Sublessee’s exclusive representative in connection with the negotiation and consummation of this Sub-Sublease. Sub-Sublessor agrees to pay any commissions due to Sub-Sublessor’s Broker pursuant to a separate agreement with Sub-Sublessor’s Broker, which broker shall pay Sub-Sublessee’s Broker as set forth in a separate agreement between Sub-Sublessor’s Broker and Sub-Sublessee’s Broker. Sub-Sublessee shall indemnify and hold Sub-Sublessor, Sublessor and Prime Landlord harmless from any claim, cost, liability or expense arising out of any broker, other than Sub-Sublessee’s Broker claiming a commission or other form of compensation by virtue of having dealt with Sub-Sublessee with regard to this Sub-Sublease transaction. Sub-Sublessor shall indemnify and hold Sub-Sublessor, Sub-Sublessee, and Prime Landlord harmless from any claim, cost, liability or expense arising out of any broker, other than Sub-Sublessor’s Broker claiming a commission or other form of compensation by virtue of having dealt with Sub-Sublessor with regard to this Sub-Sublease transaction.

16. **Holdover.** Any holdover by Sub-Sublessee of any portion of the Sub-Subleased Premises beyond the scheduled Termination Date shall result in the payment of rent equal to the holdover rent and any other sums payable by Sub-Sublessor pursuant to the Prime Lease. Notwithstanding the foregoing, Sub-Sublessee shall have no right to holdover any portion of the Sub-Subleased Premises.

17. **Attorneys’ Fees.** In any action between the parties as a result of failure to perform or a default under this Sub-Sublease, the prevailing party shall be entitled to recover from the other party, and the other party shall pay to the prevailing party, the prevailing party’s attorneys’ fees

and disbursements and court costs incurred in such action. The terms of this Section 17 shall survive Closing.

18. **Consequential Damages.** As a material inducement for Sub-Sublessor to sub-lease the Sub-Subleased Premises to Sub-Sublessee, Sub-Sublessee agrees that it is solely responsible for all consequential damages incurred under this Sub-Sublease and the Prime Lease relating solely to its failure to vacate the Sub-Subleased Premises on or prior to the Expiration Date.

[signature page follows]

The parties have executed this Sub-Sublease as of the date first set forth above.

SUB-SUBLESSOR:

US LBM HOLDINGS, LLC, a Delaware
limited liability company

By: _____

Name: Michael Schultz

Its: Senior Director of Corporate Real Estate

SUB-SUBLESSEE:

TD Industries, a Texas corporation

By: _____

Name: David Fultz

Its: President

CONSENTED TO BY:

SUBLESSOR:

RUSKIN COMPANY, a Delaware corporation

By: _____

Name: _____

Its: _____